

similar common-law immunity for municipalities, the bill's opponents doubtless would have raised the spectre of its destruction, as well." *Ante*, at 643-644. This is but another example of the Court's continuing willingness to find meaning in silence. This example is particularly noteworthy because the very next sentence in the Court's opinion concedes: "To be sure, there were two doctrines that afforded municipal corporations some measure of protection from tort liability." *Ante*, at 644. Since the opponents of the Sherman amendment repeatedly expressed their conviction that strict municipal liability was unprecedented and unwise, the failure to recite the theories of municipal immunity is of no relevance here. In any event, that silence cannot contradict the many contemporary judicial decisions applying that immunity. See *infra*, at 677-678, and nn. 16, 17.

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The Court's decision also runs counter to the common law in the 19th century, which recognized substantial tort immunity for municipal actions. *E. g.*, 2 J. Dillon, *Law of Municipal Corporations* §§ 753, 764, pp. 862-863, 875-876 (2d ed. 1873); W. Williams, *Liability of Municipal Corporations for Tort* 9, 16 (1901). Nineteenth-century courts generally held that municipal corporations were not liable for acts undertaken in their "governmental," as opposed to their "proprietary," capacity.¹⁶ Most States now use other criteria

¹⁶ In the leading case of *Bailey v. Mayor &c. of the City of New York*, 3 Hill 531, 539 (N. Y. 1842), the court distinguished between municipal powers "conferred for the benefit of the public" and those "made as well for the private emolument and advantage of the city. . . ." Because the injury in *Bailey* was caused by a water utility maintained for the exclusive benefit of the residents of New York City, the court found the municipality liable "as a private company." *Ibid.* This distinction was construed to provide local governments with immunity in actions alleging inadequate police protection, *Western College of Homeopathic Medicine v. Cleveland*, 12 Ohio St. 375 (1861), improper sewer construction, *Child v.*